# Rhode Island AI Guidance: Data and Student Privacy Passages

Excerpted verbatim from *Artificial Intelligence (AI) Guidance for Local Education Agencies (LEAs) (Rhode Island Department of Education, August 2025)*. Page numbers match the document's own page numbering. Ellipses (…) mark omitted text. Three short passages from a table (page 16) are transcribed from the rendered page and marked [graphic]. The Spanish translation of the sample parent letter is not repeated, and the data-privacy checklist items overlap with the contract recommendations on pages 29–30 and 37.

## Executive Summary (excerpt)

Source: page 4

RIDE believes AI use in Rhode Island schools should:

- Ensure student data privacy;

Through a review process, RIDE also offers initial vetting support to local education agencies (LEAs) and the state's education stakeholders (educators, caregivers, education supporters, etc.) on the selection and use of AI-supported tools for learning.

## Risks of AI Use (excerpt)

Source: page 13

Inadvertent sharing of student data or other confidential information when interacting with these tools.

## Ensure equitable access to developmentally appropriate AI programs (footnote 4, excerpt)

Source: page 14

In general, AI products require explicit parental consent for use with students under thirteen. Educators should always carefully explore terms of use and their LEA's responsible use policies before considering any AI-based tool.

## Developmentally Appropriate Use Cases and Caveats (excerpt)

Source: page 16 [graphic]

**K-2, Sample Use Cases**

- [graphic] AI only used under direct supervision of a teacher with district-approved AI tools.
- [graphic] Reinforce technology remembers what you write and enter.

**6-8, Caveats**

- [graphic] Age 13 is when children can create a GenAI account with their parent's permission.

## Special Consideration: Safety, Security, Privacy (Teach AI toolkit section listed for Acceptable Use Policies, excerpt)

Source: page 19

- Special Consideration: Safety, Security, Privacy

## Diverse Learners: Pitfalls and Pathways (excerpt)

Source: pages 25–26

**Data Privacy and Security:** The collection and analysis of student data by AI systems raises crucial questions about data protection, consent, and potential misuse.

**Develop Comprehensive AI Policies for All Learners:** Establish clear, ethical guidelines for AI use that prioritize student learning, data privacy, and equitable access.

## 8. Security and Safety

Source: pages 27–31

**Key Resources:**

There are many privacy, intellectual property, and developmental concerns implicated by the use of AI. Stakeholders will need intentional professional learning, along with policies and procedures to handle instances where AI tools do not conform to expectations.

The analysis below cites and summarizes the legislative intent of the federal laws primarily governing the preservation of various privacy interests:

**Family Educational Rights and Privacy Act (FERPA)** - Prohibits disclosure of Personally Identifiable Information (PII) with some exceptions; provides right of review and correction to parents.

**Children's Internet Protection Act (CIPA)** - Revokes E-Rate funding to districts unless filtering put in place; requires internet safety policy.

**Children's Online Privacy Protection Act (COPPA)** - Requires explicit parental consent from online vendors with actual knowledge that they serve children under 13 years of age; must provide reasonable data protections; establishes right of parental data review and refusal.

**Protection of Pupils' Rights Amendment (PPRA)** - Governs the collection of survey data by any federally supported or administered educational program that may be used to discriminate (e.g., income, political views, self-incriminating information).

**Health Insurance Portability and Accountability Act (HIPAA)** - Protects sensitive health information for covered entities.

**Additional Considerations Include:**

- Personally Identifiable Information (PII) should never be shared unless required.
- Extensive training should be provided to students and staff on what not to share with any platforms.
- Student and staff PII and intellectual properties should never be endangered. Users should refrain from sharing any work that holds commercial promise and/or novelty with AI platforms, unless absolutely necessary. Students should be encouraged to refrain from using their real names in these platforms unless required.
- Privacy by default - strict prohibition on using data for training models without explicit consent.

**Potential:**

The most important promise LEAs can keep for their students is to keep them safe from harm. School districts will face difficult challenges with regard to the procurement of AI tools and resources. The most meaningful opportunity for LEAs is protecting student data and privacy by preserving the legislative intent of a number of key federal and state statutes, in a way that achieves more than mere compliance.

**Use of AI that protects student safety and privacy:** AI can be used safely in compliance with existing legislation that protects student safety and data privacy.

**Pitfalls (excerpt):**

**Behavioral profiling.** These tools can easily behaviorally profile people such that individuals can be tracked through their online behavior without ever revealing their identity.

**Pathways (excerpt):**

**Prioritize Student Privacy:** Contracts should include strict data privacy provisions, outlining how student data will be collected, used, stored, and protected. Data sharing agreements should be transparent and compliant with all applicable laws and regulations. Recognize that adding student information on AI platforms will create access to that information to all.

**Demand Transparency and Explainability:** Require vendors to provide clear explanations of their AI algorithms, including how decisions are made and what data is used. Insist on regular audits and assessments of the tools to ensure ongoing transparency and accountability.

**Ensure Cybersecurity and Data Protection:** Contracts should specify strong cybersecurity measures to protect student data and educational systems from unauthorized access, data breaches, and cyberattacks. Regular security audits and updates should be included in the agreement.

**Establish Clear Ownership and Control:** Define clear ownership and control of data generated by AI tools. Ensure that schools retain ownership and control over their data, even after the contract with the vendor ends.

**Ensure Vendor Background Checks and Training:** Ensure that contracts require vendors to background check, train, and monitor all employee access to protected data.

**Appoint a "Data Security Czar" (e.g., Chief Information Security Officer), or write responsibilities into existing job functions (e.g., CIO):** It is important to have one point of accountability to coordinate across the organization, as data security must be addressed in all units and workstreams.

**Establish "Plan B" Data Breach Processes:** Notice processes and alternate lesson plans should always be defined and ready to be implemented in the event of a data breach.

**Encourage the use of "walled garden," or private large language models (LLMs) in K-12 settings:** Walled gardens represent LLM-based educational tools designed specifically for K-12 environments, with controlled content and safety features appropriate for students, such as Khanmigo's adaptive math tutoring platform or DreamBox Learning's intelligent adaptive learning platform.

**Consider using a ratings framework for all AI adoption:** Common Sense Media has published a ratings framework that can serve as a guide when selecting vendors.

## 10. LEA Operations/Administration/Communications (excerpt)

Source: pages 36–37

**Privacy and Security:** Handling sensitive data raises important questions about data protection and cybersecurity.

**Develop AI Governance:** Establish clear policies for AI adoption, use, and monitoring within the LEA, ensuring alignment with data privacy rules, regulations and legislation. Develop robust data management practices to ensure the integrity of data used in AI systems.

**Update Procurement Regulations:** Procurement regulations and contracts must be updated to protect data privacy and security, and mitigate bias. Where appropriate, implement contractual provisions, for example:

- Require a data security plan of vendors.
- Establish a right of review and audit.
- Clarify that districts own their data, not the vendor.
- Require vendor employee training on data security.
- Storage and access of the data should be encouraged to take place exclusively in the United States.
- Vendor agrees to the complete destruction of all customer data (and metadata) upon the termination of the contractual relationship.
- Data must be encrypted in transit and at rest.
- Vendor must notify districts and directly affected individuals within a reasonable timeframe.

## Establish Data Interpretation Protocols and Enhance Data Governance

Source: page 38

**Establish Data Interpretation Protocols:** Implement a structured process for interpreting AI-generated insights that includes:

- Clear guidelines for handling potentially sensitive or controversial findings.

**Enhance Data Governance.** Strengthen data governance practices by:

- Developing clear protocols for data access, use, and sharing, especially for sensitive information.
- Implementing transparency measures to communicate how AI-generated data is being used within the organization.
- Ensuring all AI implementations comply with relevant privacy laws and ethical standards.

## 11. Family, Caregiver and Community Engagement (excerpt)

Source: pages 39–42

As shown in the chart below, parents need reassurance from schools about AI safety, as only 33% currently trust their school to protect their child's data, and 72% want the ability to opt their child out of using AI in school.

**Privacy Concerns:** Using AI for personalized communication raises questions about data collection and privacy, which must be carefully addressed to maintain trust.

**Data Sharing Complexities:** LEAs need to establish clear data sharing agreements with community-based organizations to ensure compliance with privacy regulations while facilitating necessary information exchange.

**Communicate Transparently:** Clearly communicate how AI is used in schools, explaining benefits and limitations, student data privacy and security, and how parents and caregivers can support effective and ethical use of AI at home.

**Prioritize Data Privacy:** Implement robust data protection policies and be transparent about data handling in AI-powered systems. Establish clear data sharing agreements with CBOs that comply with all relevant privacy regulations.

## 12. Conclusion and Next Steps (excerpt)

Source: page 43

However, the potential of AI must be balanced with thoughtful consideration of equity, privacy, and the central role of human educators.

This approach should be rooted in the principles outlined in this guidance: prioritizing student learning and growth, ensuring data privacy, promoting equitable access, and maintaining human oversight in all AI-assisted processes.

## Appendix: LEA AI Getting Started With AI Checklist (excerpt)

Source: page 46

LEAs can use this guidance as they begin to implement AI, ensuring equity and alignment with educational objectives, while prioritizing student privacy and safety.

**Policy and Governance**

- Create a data governance plan ensuring privacy and ethical standards.
- Establish a vetting process for AI tools, emphasizing data security, equity and bias mitigation.
- Establish protocols for obtaining parental consent for student AI use.

## Appendix: AI Software Procurement Checklist (excerpt)

Source: pages 47–48

This AI software procurement checklist outlines critical considerations for LEAs when procuring AI software for educational use. It covers essential areas including data privacy, transparency, equity, effectiveness, cybersecurity, implementation support, and ethical considerations.

**Data Privacy and Security:**

- Verify vendor compliance with FERPA, CIPA, COPPA, PPRA, and HIPAA regulations and NIST
- Ensure contract includes strict data privacy provisions and prohibits unauthorized data use
- Establish clear data ownership and control terms, favoring school retention
- Mandate vendor background checks and training for employees accessing protected data

**Transparency and Accountability:**

- Mandate regular third-party audits of AI tools for bias, effectiveness, and security
- Insist on vendor transparency regarding data sources and model training procedures

**Cybersecurity:**

- Specify strong cybersecurity measures and mandate regular security audits
- Require vendor to have an incident response plan for potential data breaches

**Contract Flexibility:**

- Include provisions for contract termination and data export if vendor fails to meet standards

## Appendix: Sample Letter to Parents and Guardians on AI Use (excerpt)

Source: page 49

- Privacy & Security: AI use will align with regulations protecting student data privacy, safety, and accessibility.

We remind parents and guardians that AI tools may have age restrictions. For example, ChatGPT currently requires users to be at least 13 years old and requires parental or legal guardian consent for students between the ages of 13 and 18.